Worthy Products Ltd

Account Application Form

Company Name : _____ **Trading Name** _____

Company Registration Number : _____ **GST Registration Number** : _____

Company Type (Please select): Sole Trader ☐ / Individual ☐ / Partnership ☐ / Company ☐

Business Address: _____

Delivery Address: _____

Email Address: _____

Estimated Purchases From Worthy Products : $ _____ / Month

1: Business Contact Person Name : _____

Designation: _____ Email : _____

Landline Phone: _____ Mobile: _____

2: Accounts Department Contact Name: _____

Designation: _____ Email : _____

Landline Phone: _____ Mobile: _____

Directors / Partners / Proprietors Names:	**Contact Numbers:**
1: _____	_____
2: _____	_____
3: _____	_____

Trade / Credit References:	**Contact Numbers:**	**Monthly Purchases :**
1: _____	_____	_____
2: _____	_____	_____
3: _____	_____	_____

Acceptance of Terms Conditions

I/We hereby apply to open a credit account with Worthy Products Limited. I/We have already read and fully understand Worthy Products Limited's Terms and Conditions of Trade (see next page) and agree to abide by them.

Name of: _____ **Designation** _____

Signature: _____ Date: _____

Guarantee

In consideration of Worthy Products Limited agreeing to supply _____ (the customer) with products and services on credit, I/We hereby jointly and severally agree with Worthy Products Limited as follows:

To guarantee the due performance by the customer of the terms and conditions attached hereto and the payment of any moneys advanced by way of credit to the customer.

That this agreement shall be a continuing guarantee to Worthy Products Limited for all debts of the Customer with Worthy Products Limited, in respect of products and services supplied to the customer.

Dated: _____ Guarantor(s) Signature _____

Guarantor(s) Name(s): _____ Position in Company_____

Please complete and return to Worthy Products Limited: Accounts@worthyproducts.nz

TERMS AND CONDITIONS OF TRADE

1. DEFINITIONS

Unless the context otherwise requires, the following definitions shall apply to these terms of trade:

"**Worthy Products Ltd/Worthy/Worthy Products/We**" means Worthy Products Limited and any of its related companies that have supplied or services and shall include the successors and assigns of the company.

"Customer" means the Applicant / Customer(s) named in this application for the credit account and shall include the Customer's trustee and executors if an individual or its successors, assigns or administrators.

2. ACCEPTANCE OF TERMS AND CONDITIONS

Use of this account shall constitute acceptance of these Terms and Conditions of Supply notwithstanding that the application has not been completed and or signed by or behalf of the customer.

3. LIABILTY

3.1 All Claims must be in writing and no claims recognised after 14 days of receipt of products or services.

3.2 Where contents and conditions of contents are unknown and out of sight, claims will be considered only where there are signs of damage.

4. QUOTES

4.1 Quotes we supply in writing are valid for 14 days and if the customer decides to change any such variable, we reserve the right to adjust such quote.

4.2 Verbal Quotes over the phone are estimates only and if necessary, can change if we feel we were not given reasonable information.

5. PAYMENT

5.1 The Customer shall pay for the goods and service no later than the 20th of the month following the date of the invoice or as may otherwise within the Payment Terms within which goods are supplied or delivered.

5.2 Worthy may at any time in its sole discretion withdraw the provision of the credit to the customer.

6. DEFAULT

6.1 In the event of any default under clause 5.1 (above) the full amount owing to Worthy shall immediately become due and payable.

6.2 Worthy may take immediate action if the Customer is in default under any agreement with Worthy or commits an act of insolvency or bankruptcy, goes into liquidation or receivership, enters into a creditors composition or has its credit standing impaired in any way.

6.3 If the customer fails to pay the amount due on or before the due date Worthy (without prejudice to its other rights and remedies) shall be entitled to charge interest at the rate of 2% per month compounded monthly on the 20th of each month on the outstanding amount balance.

6.4 The Customer will pay all costs and expenses (including costs on a solicitor / client basis and debt collectors' costs) the Worthy incurs in enforcing or attempting to enforce the Worthy's rights under this clause. The Worthy may deduct any costs and expenses incurred from the proceeds of sale of any Goods recovered from the Customer.

7. CREDIT INFORMATION

The Customer authorises Worthy to enquire from any person, company or organisation for information Worthy may require to furnish credit information. Under the Privacy Act 1993 the customer has the right to access and correct their personal information held by Worthy.

8. DELIVERY

8.1 The Customer shall provide suitable access to the customers delivery site in all-weather condition's for Worthy delivery vehicles. Any damage to footpaths, kerbs, drains and other property by any Worthy vehicles delivering beyond the kerb line shall be the Customer's responsibility.

8.2 If Worthy is unable to deliver the goods or preform a service because of any cause beyond its control (including any force majeure event event) it may suspend delivery without incurring any liability for loss or damage suffered by the customer.

9. VARIATIONS

Worthy reserve the right to make and notify the Customer of amendments to these Terms and Conditions of Supply at any time.

10. TERMINATION

Worthy and the Customer each have the right to terminate this credit facility on giving five (5) working days' notice in writing, but no such termination shall release the Customer from payment of any monies owed to Worthy.

11. ENFORCEMENT

The Customer irrevocably give Worthy Products and its agents the right to enter upon the customers (including leased premises), without giving notice and without being liable to the customer, if Worthy Products has cause to exercise any rights it has under section 109 of the PPSA.

Signed: _____ Date: _____

Please complete and return to Worthy Products Limited: Accounts@worthyproducts.nz